Form **1023**

(Rev. January 2020)

Department of the Treasury
Internal Revenue Service

Application for Recognition of Exemption
Under Section 501(c)(3) of the Internal Revenue Code

Do not enter social security numbers on this form as it may be made public.

Go to www.irs.gov/Form1023 for instructions and the latest information.

OMB No. 1545-0047

Note: *If exempt status is approved, this application will be open for public inspection.*

Use the "?" buttons throughout this form for help in completing this application. For additional help, call IRS Exempt Organizations Customer Account Services toll-free at 1-877-829-5500.

If you cannot complete required responses within the textbox limits throughout this form, upload your additional narratives with the other required documents.

Part I Identification of Applicant

1a Full Name of Organization (exactly as it appears in your organizing document) OPEN SOURCE ENDOWMENT FOUNDATION		**b** Care of Name (if applicable)	
c Mailing Address (Number, street and room/suite) 74 E GLENWOOD AVE UNIT 5756	**d** City SMYRNA	**e** Country United States	
f State Delaware	**g** Zip Code + 4 19977	**h** Foreign Province (or State)	**i** Foreign Postal Code
2 Employer Identification Number 33-3502715	**3** Month Tax Year Ends DECEMBER	**4** Person to Contact if More Information is Needed (officer, director, trustee, or authorized representative) KARL MILL	
5 Contact Telephone Number 415-234-3349	**6** Fax Number (optional) 415-363-4377	**7** User Fee Submitted $600.00	

8 Organization's Website (if available):

9 List the names, titles, and mailing addresses of your officers, directors, and/or trustees.

First Name: KONSTANTIN	Last Name: VINOGRADOV	Title: CHAIR, DIRECTOR
Mailing Address: 74 E GLENWOOD AVE UNIT 5756	City: SMYRNA	
State (or Province): DE	Zip Code (or Foreign Postal Code): 19977	
First Name: CHAD	Last Name: WHITACRE	Title: SECRETARY, DIRECTOR
Mailing Address: 74 E GLENWOOD AVE UNIT 5756	City: SMYRNA	
State (or Province): DE	Zip Code (or Foreign Postal Code): 19977	
First Name: MAXIM	Last Name: KONOVALOV	Title: DIRECTOR, TREASURER
Mailing Address: 74 E GLENWOOD AVE UNIT 5756	City: SMYRNA	
State (or Province): DE	Zip Code (or Foreign Postal Code): 19977	
First Name: JONATHAN	Last Name: STARR	Title: EXECUTIVE DIRECTOR
Mailing Address: 74 E GLENWOOD AVE UNIT 5756	City: SMYRNA	
State (or Province): DE	Zip Code (or Foreign Postal Code): 19977	
First Name:	Last Name:	Title:
Mailing Address:	City:	
State (or Province):	Zip Code (or Foreign Postal Code):	

☐ Check here to add more officers, directors, and/or trustees.

Part II Organizational Structure

1 You must be a corporation, limited liability company (LLC), unincorporated association, or trust to be tax exempt.

Select your type of organization.

(●) Corporation

At the end of this form, you must upload a copy of your articles of incorporation (and any amendments) that shows proof of filing with the appropriate state agency.

( ) Limited Liability Company (LLC)

At the end of this form, you must upload a copy of your articles of organization (and any amendments) that shows proof of filing with the appropriate state agency. Also, if you adopted an operating agreement, upload a copy, along with any amendments.

( ) Unincorporated Association

At the end of this form, you must upload a copy of your articles of association, constitution, or other similar organizing document that is dated and includes at least two signatures. Include signed and dated copies of any amendments.

( ) Trust

At the end of this form, you must upload a signed and dated copy of your trust agreement. Include signed and dated copies of any amendments.

2 Enter the date you formed. (MM/DD/YYYY) 02/14/2025

3 Select your state (or U.S. territory) of incorporation or other formation. If you were formed under the laws of a foreign country, select Foreign Country. Delaware

4 Have you adopted bylaws? If "Yes," at the end of this form, upload a current copy showing the date of adoption. If "No," explain how you select your officers, directors, or trustees. (●) Yes ( ) No

5 Are you a successor to another organization? ( ) Yes (●) No

Answer "Yes" if you have taken or will take over the activities of another organization, you took over 25% or more of the fair market value of the net assets of another organization, or you were established upon the conversion of an organization from for-profit to nonprofit status. If "Yes," complete Schedule G.

Part III Required Provisions in Your Organizing Document

Part III helps ensure that, when you submit this application, your organizing document contains the required provisions to meet the organizational test under section 501(c)(3).

If you cannot check "Yes" in both Lines 1 and 2, your organizing document does not meet the organizational test. DO NOT file this application until you have amended your organizing document. Remember to upload your original and amended organizing documents at the end of this form.

1 Section 501(c)(3) requires that your organizing document limit your purposes to one or more exempt purposes within section 501(c)(3), such as charitable, religious, educational, and/or scientific purposes.

The following is an example of an acceptable purpose clause: The organization is organized exclusively for charitable, religious, educational, and scientific purposes under section 501(c)(3) of the Internal Revenue Code, or corresponding section of any future federal tax code.

Does your organizing document meet this requirement? (●) Yes ( ) No

1a State specifically where your organizing document meets this requirement, such as a reference to a particular article or section in your organizing document (Page/Article/Paragraph):

Page 1, Article 4

2 Section 501(c)(3) requires that your organizing document provide that upon dissolution, your remaining assets be used exclusively for section 501(c)(3) exempt purposes, such as charitable, religious, educational, and/or scientific purposes. Depending on your entity type and the state in which you are formed, this requirement may be satisfied by operation of state law.

The following is an example of an acceptable dissolution clause: Upon the dissolution of this organization, assets shall be distributed for one or more exempt purposes within the meaning of section 501(c)(3) of the Internal Revenue Code, or corresponding section of any future federal tax code, or shall be distributed to the federal government, or to a state or local government, for a public purpose.

Does your organizing document meet this requirement? (●) Yes ( ) No

2a State specifically where your organizing document meets this requirement, such as a reference to a particular article or section in your organizing document (Page/Article/Paragraph) or indicate that you rely on state law.

Page 1, Article 5

Part IV Your Activities

1 Describe completely and in detail your past, present, and planned activities. Do not refer to or repeat the purposes in your organizing document.

For each past, present, or planned activity, include information that answers the following questions:

a. What is the activity?
b. Who conducts the activity?
c. Where is the activity conducted?
d. What percentage of your total time is allocated to the activity?
e. How is the activity funded (for example, donations, fees, etc.) and what percentage of your overall expenses is allocated to this activity?
f. How does the activity further your exempt purposes?

Please see attached Supplemental Responses for more information regarding the activities of Applicant.

Part IV **Your Activities** *(continued)*

2 Enter the 3-character NTEE Code that best describes your activities. T30

Or check here if you want the IRS to select the NTEE Code that best describes your activities. ☐

3 Do any of your programs limit the provision of goods, services, or funds to a specific individual or group of specific individuals? For example, answer "Yes" if goods, services, or funds are provided only for a particular individual, your members, individuals who work for a particular employer, or graduates of a particular school. If "Yes," explain the limitation and how recipients are selected for each program. ○ Yes ● No

4 Do any individuals who receive goods, services, or funds through your programs have a family or business relationship with any officer, director, trustee, or with any of your highest compensated employees or highest compensated independent contractors? If "Yes," explain how these related individuals are eligible for goods, services, or funds. ○ Yes ● No

5 Do you or will you support or oppose candidates in political campaigns in any way? If "Yes," explain. ○ Yes ● No

6 Do you or will you attempt to influence legislation? If "Yes," explain how you attempt to influence legislation. ○ Yes ● No

Part IV **Your Activities** *(continued)*

6a Did you or will you make an election to have your legislative activities measured by expenditures by filing Form 5768? If "No," describe whether your attempts to influence legislation are a substantial part of your activities. Include the time and money spent on your attempts to influence legislation as compared to your total activities.

○ Yes ○ No

7 Do you or will you publish, own, or have rights in music, literature, tapes, artworks, choreography, scientific discoveries, or other intellectual property? If "Yes," describe who owns or will own any copyrights, patents, or trademarks, whether fees are or will be charged, how the fees are determined, and how any items are or will be produced, distributed, and marketed.

● Yes ○ No

See Supplemental Responses.

8 Do you or will you provide educational information to the general public on budgeting, personal finance, financial literacy, saving and spending practices, the sound use of consumer credit, and/or assist individuals and families with financial problems such as credit card debt and foreclosure by providing them with counseling? If "Yes," explain.

○ Yes ● No

9 Do you or will you make grants, loans, or other distributions to organizations? If "Yes," describe the type and purpose of the grants, loans, or distributions, how you select your recipients including submission requirements (such as grant proposals or application forms), and the criteria you use or will use to select recipients. Also describe how you ensure the grants, loans, and other distributions are or will be used for their intended purposes (including whether you require periodic or final reports on the use of funds and any procedures you have if you identify that funds are not being used for their intended purposes). Finally, describe the records you keep with respect to grants, loans, or other distributions you make and identify any recipient organizations and any relationships between you and the recipients. If "No," continue to Line 10.

● Yes ○ No

See Supplemental Responses.

Part IV **Your Activities** *(continued)*

9a Do you or will you make grants, loans, or other distributions to organizations that are not recognized by the IRS as tax exempt under section 501(c)(3)? If "Yes," name and/or describe the non-section 501(c)(3) organizations to whom you do or will make distributions and explain how these distributions further your exempt purposes.

(●) Yes ( ) No

See Supplemental Responses.

9b Do you or will you make grants, loans, or other distributions to foreign organizations? If "Yes," name each foreign organization (if not already provided), the country and region within each country in which each foreign organization operates, any relationship you have with each foreign organization, and whether the foreign organization accepts contributions earmarked for a specific country or organization (if so, specify which countries or organizations). If "No," continue to Line 10.

(●) Yes ( ) No

See Supplemental Responses.

9c Do your contributors know that you have ultimate authority to use contributions made to you at your discretion for purposes consistent with your exempt purposes? If "Yes," describe how you relay this information to contributors.

(●) Yes ( ) No

See Supplemental Responses.

9d Do you or will you make pre-grant inquiries about the recipient organization? If "Yes," describe these inquiries, including whether you inquire about the recipient's financial status, its tax-exempt status under the Internal Revenue Code, its ability to accomplish the purpose for which the resources are provided, and other relevant information.

(●) Yes ( ) No

See Supplemental Responses.

9e Do you or will you use any additional procedures to ensure that your distributions to foreign organizations are used in furtherance of your exempt purposes? If "Yes," describe these procedures, including periodic reporting requirements, auditing grantees, site visits by your employees or compliance checks by impartial experts, etc., to verify that grant funds are being used appropriately.

(●) Yes ( ) No

See Supplemental Responses.

Part IV **Your Activities** *(continued)*

9f Do you share board members or other key personnel with the recipient organization(s)? If "Yes," identify the relationships. ○ Yes ● No

9g When you make grants, loans, or other distributions to foreign organizations, will you check the OFAC List of Specially Designated Nationals and Blocked Persons for names of individuals and entities with whom you are dealing to determine if they are included on the list? Describe any other practices you will engage in to ensure that foreign expenditures or grants are not diverted to support terrorism or other non-charitable activities. ● Yes ○ No

See Supplemental Responses.

9h Will you comply with all United States statutes, executive orders, and regulations that restrict or prohibit U.S. persons from engaging in transactions and dealings with designated countries, entities, or individuals, or otherwise engaging in activities in violation of economic sanctions administered by OFAC? ● Yes ○ No

9i Will you acquire from OFAC the appropriate license and registration where necessary? ● Yes ○ No

10 Do you or will you operate in a foreign country or countries? If "Yes," name each foreign country and region within each country in which you do or will operate and describe your operations in each one. If "No," continue to Line 11. ○ Yes ● No

10a When you conduct activities in foreign countries, will you check the OFAC List of Specially Designated Nationals and Blocked Persons for names of individuals and entities with whom you are dealing to determine if they are included on the list? Describe any other practices you will engage in to ensure that foreign expenditures or grants are not diverted to support terrorism or other non-charitable activities. ○ Yes ○ No

10b Will you comply with all United States statutes, executive orders, and regulations that restrict or prohibit U.S. persons from engaging in transactions and dealings with designated countries, entities, or individuals, or otherwise engaging in activities in violation of economic sanctions administered by OFAC? ○ Yes ○ No

10c Will you acquire from OFAC the appropriate license and registration where necessary? ○ Yes ○ No

Part IV **Your Activities** *(continued)*

11 Are you a sponsoring organization that maintains one or more donor advised funds? If yes, please provide a complete description of your program, including the specific advice that such donors may provide. Describe in detail the control you maintain (or will maintain) over the use of the funds. ○ Yes ● No

12 Do you or will you operate a school?
If "Yes," complete Schedule B. ○ Yes ● No

13 Is your principal purpose or function to provide hospital or medical care?
If "Yes," complete Schedule C. ○ Yes ● No

14 Do you or will you provide low-income housing?
If "Yes," complete Schedule F. ○ Yes ● No

15 Do you or will you provide scholarships, fellowships, educational loans, or other educational grants to individuals, including grants for travel, study, or other similar purposes?
If "Yes," complete Schedule H - Section I. ● Yes ○ No

16 Check any of the following fundraising activities that you will undertake (check all that apply):

- [x] Website, mail, email, personal, and/or phone solicitations
- [x] Foundation grant solicitations
- [ ] Receive donations from another organization's website
- [ ] Government grant solicitations
- [ ] Bingo
- [ ] Other (non-bingo) gaming activities
- [ ] Other (describe)
- [ ] We will not engage in fundraising activities.

17 Do you or will you engage in fundraising activities for other organizations? If "Yes," describe these arrangements, including the names or descriptions of the organizations for which you raise funds. ○ Yes ● No

Part V Compensation and Other Financial Arrangements

1 Do you or will you compensate officers, directors, or trustees, or do or will you have highest compensated employees, or highest compensated independent contractors? If "No," continue to Line 2. ☑ Yes ☐ No

In establishing compensation for your officers, directors, trustees, highest compensated employees, and highest compensated independent contractors:

1a Do or will the individuals that approve compensation arrangements follow a conflict of interest policy? ☑ Yes ☐ No

1b Do or will you approve compensation arrangements in advance of paying compensation? ☑ Yes ☐ No

1c Do or will you document in writing the date and terms of approved compensation arrangements? ☑ Yes ☐ No

1d Do or will you record in writing the decision made by each individual who decided or voted on compensation arrangements? ☑ Yes ☐ No

1e Do or will you approve compensation arrangements based on information about compensation paid by similarly situated taxable or tax-exempt organizations for similar services, current compensation surveys compiled by independent firms, or actual written offers from similarly situated organizations? ☑ Yes ☐ No

1f Do or will you record in writing both the information on which you relied to base your decision and its source? ☑ Yes ☐ No

1g Do or will you have any other practices you use to set reasonable compensation? If "Yes," describe these practices. ☐ Yes ☑ No

2 Have you adopted a conflict of interest policy consistent with the sample conflict of interest policy in Appendix A to the instructions? If you are a hospital, answer "Yes" if your conflict of interest policy includes provisions consistent with the additional healthcare related provisions in the sample document. If "No," describe the procedures you will follow to ensure that persons who have a conflict of interest will not have influence over setting their own compensation or regarding business deals with themselves. ☑ Yes ☐ No

3 Do you or will you compensate any of your officers, directors, trustees, highest compensated employees, and highest compensated independent contractors through non-fixed payments, such as discretionary bonuses or revenue-based payments? If "Yes," describe all non-fixed compensation arrangements, including how the amounts are determined, who is eligible for such arrangements, whether you place a limitation on total compensation, and how you determine or will determine that you pay no more than reasonable compensation for services. ☐ Yes ☑ No

Part V **Compensation and Other Financial Arrangements** *(continued)*

4 Do you or will you purchase or sell any goods, services, or assets from or to: (i) any of your officers, directors, or trustees; (ii) any family of any of your officers, directors, or trustees; (iii) any organizations in which any of your officers, directors, or trustees are also officers, directors, or trustees, or in which any individual officer, director, or trustee owns more than a 35% interest; (iv) your highest compensated employees; or (v) your highest compensated independent contractors? If "Yes," describe any such transactions that you made or intend to make, with whom you make or will make such transactions, how the terms are or will be negotiated at arm's length, and how you determine you pay no more than fair market value or you are paid at least fair market value.

○ Yes ● No

5 Do you or will you have any leases, contracts, loans, or other agreements with: (i) your officers, directors, or trustees; (ii) any family of any of your officers, directors, or trustees; (iii) any organizations in which any of your officers, directors, or trustees are also officers, directors, or trustees, or in which any individual officer, director, or trustee owns more than a 35% interest; (iv) your highest compensated employees; or (v) your highest compensated independent contractors? If "Yes," describe any written or oral arrangements that you made or intend to make, with whom you have or will have such arrangements, how the terms are or will be negotiated at arm's length, and how you determine you pay no more than fair market value or you are paid at least fair market value.

○ Yes ● No

6 Do you or will you contract with another organization to develop, build, market, or finance your facilities? If "Yes," describe each facility, the role of the other organization, and any business or family relationship between the organization and your officers, directors, or trustees. Explain how that entity is selected, how the terms of any contract(s) are negotiated at arm's length, and how you determine you will pay no more than fair market value for services.

○ Yes ● No

Part V Compensation and Other Financial Arrangements *(continued)*

7 Does or will someone other than your own employees or volunteers manage your activities or facilities? ○ Yes ● No

If "Yes," describe the activities or facilities that will be managed by others, the names of the persons or organizations that manage or will manage your activities or facilities, and any business or family relationship between the organization and your officers, directors, or trustees. Explain how these managers were or will be selected, how the terms of any contracts or other agreements were or will be negotiated, and how you determine you will pay no more than fair market value for services.

8 Do you participate in any joint ventures, including partnerships or limited liability companies treated as partnerships, in which you share profits and losses with partners? If "Yes," state your ownership percentage in each joint venture, list your investment in each joint venture, describe the tax status of other participants in each joint venture (including whether they are section 501(c)(3) organizations), describe the activities of each joint venture, describe how you exercise control over the activities of each joint venture, and describe how each joint venture furthers your exempt purposes. ○ Yes ● No

Part VI Financial Data

1 Select the option that best describes you to determine the years of revenues and expenses you need to provide.

● You completed less than one tax year.

Provide a total of three years of financial information (including the current year and two future years of reasonable and good faith projections of your future finances) in the following Statement of Revenues and Expenses.

○ You completed at least one tax year but fewer than five.

Provide a total of four years financial information (including the current year and three years of actual financial information or reasonable and good faith projections of your future finances) in the following Statement of Revenues and Expenses.

○ You completed five or more tax years.

Provide financial information for your five most recent tax years (including the current year) in the following Statement of Revenues and Expenses.

Part VI **Financial Data** *(continued)*

A. Statement of Revenues and Expenses

	Type of revenue	Current tax year	4 prior tax years or 2 succeeding tax years			
		From: 01/01/2025 To: 12/31/2025	From: 01/01/2026 To: 12/31/2026	From: 01/01/2027 To: 12/31/2027	From: __/__/____ To: __/__/____	From: __/__/____ To: __/__/____
1	Gifts, grants, and contributions received (do not include unusual grants)	$700,000.	$1,600,000.	$3,100,000.		
2	Membership fees received					
3	Gross investment income	$10,000.	$50,000.	$200,000.		
4	Net unrelated business income					
5	Taxes levied for your benefit					
6	Value of services or facilities furnished by a governmental unit without charge (not including the value of services generally furnished to the public without charge)					
7	Any revenue not otherwise listed above or in lines 9 - 12 below (provide an itemized list below)					
8	Total of lines 1 through 7	$710,000.	$1,650,000.	$3,300,000.	$0.	$0.
9	Gross receipts from admissions, merchandise sold or services performed, or furnishing of facilities in any activity that is related to your exempt purposes (provide an itemized list below)					
10	Total of lines 8 and 9	$710,000.	$1,650,000.	$3,300,000.	$0.	$0.
11	Net gain or loss on sale of capital assets (provide an itemized list below)					
12	Unusual grants (provide an itemized list below)					
13	Total Revenue (add lines 10 through 12)	$710,000.	$1,650,000.	$3,300,000.	$0.	$0.
	Type of expense	**Current tax year**	**4 prior tax years or 2 succeeding tax years**			
14	Fundraising expenses		$20,000.	$20,000.		
15	Contributions, gifts, grants, and similar amounts paid out (provide an itemized list below)		$40,000.	$150,000.		
16	Disbursements to or for the benefit of members (provide an itemized list below)					
17	Compensation of officers, directors, and trustees		$100,000.	$145,000.		
18	Other salaries and wages			$10,000.		
19	Interest expense					
20	Occupancy (rent, utilities, etc.)					
21	Depreciation and depletion					
22	Professional fees	$20,000.	$15,000.	$10,000.		
23	Any expense not otherwise classified, such as program services (provide an itemized list below)	$5,000.	$5,000.	$5,000.		
24	Total Expenses (add lines 14 through 23)	$25,000.	$180,000.	$340,000.	$0.	$0.

25 Itemized financial data

Line 15 - Maintainer and developer grants in furtherance of the Foundation's mission. Line 23 - Events hosting, Tech infrastructure

Part VI **Financial Data** *(continued)*

B. Balance Sheet (for your most recently completed tax year)	Year End: 12/31/2025
Assets	
1 Cash	$0.
2 Accounts receivable, net	
3 Inventories	
4 Bonds and notes receivable (provide an itemized list below)	
5 Corporate stocks (provide an itemized list below)	
6 Loans receivable (provide an itemized list below)	
7 Other investments (provide an itemized list below)	
8 Depreciable assets (provide an itemized list below)	
9 Land	
10 Other assets (provide an itemized list below)	
11 Total Assets (add lines 1 through 10)	$0.
Liabilities	
12 Accounts payable	$0.
13 Contributions, gifts, grants, etc. payable	
14 Mortgages and notes payable (provide an itemized list below)	
15 Other liabilities (provide an itemized list below)	
16 Total Liabilities (add lines 12 through 15)	$0.
Fund Balances or Net Assets	
17 Total fund balances or net assets	
18 Total Liabilities and Fund Balances or Net Assets (add lines 16 and 17)	$0.

19 Itemized financial data

Part VII Foundation Classification

Part VII is designed to classify you as an organization that is either a private foundation or a public charity. Public charity classification is a more favorable tax status than private foundation classification. If you are a private foundation, this part will further determine whether you are a private operating foundation.

1 Select the foundation classification you are requesting from the list below.

- [x] You are described in 509(a)(1) and 170(b)(1)(A)(vi) as an organization that receives a substantial part of its financial support in the form of contributions from publicly supported organizations, from a governmental unit, or from the general public.
- [ ] You are described in 509(a)(2) as an organization that normally receives not more than one-third of its financial support from gross investment income and receives more than one-third of its financial support from contributions, membership fees, and gross receipts from activities related to its exempt functions (subject to certain exceptions).
- [ ] You are described in 509(a)(1) and 170(b)(1)(A)(i) as a church or a convention or association of churches. Complete Schedule A.
- [ ] You are described in 509(a)(1) and 170(b)(1)(A)(ii) as a school. Complete Schedule B.
- [ ] You are described in 509(a)(1) and 170(b)(1)(A)(iii) as a hospital, a cooperative hospital service organization, or a medical research organization operated in conjunction with a hospital. Complete Schedule C.
- [ ] You are described in 509(a)(1) and 170(b)(1)(A)(iv) as an organization operated for the benefit of a college or university that is owned or operated by a governmental unit.
- [ ] You are described in 509(a)(1) and 170(b)(1)(A)(ix) as an agricultural research organization directly engaged in the continuous active conduct of agricultural research in conjunction with a college or university.
- [ ] You are described in 509(a)(3) as an organization supporting either one or more organizations described in 509(a)(1) or 509(a)(2) or a publicly supported section 501(c)(4), (5), or (6) organization. Complete Schedule D.
- [ ] You are described in 509(a)(4) as an organization organized and operated exclusively for testing for public safety.
- [ ] You are a publicly supported organization and would like the IRS to decide your correct classification.
- [ ] You are a private foundation.

1a As a private foundation, section 508(e) requires special provisions in your organizing document in addition to those that apply to all organizations described in section 501(c)(3). Check this box to confirm that your organizing document includes these provisions or you rely on state law. ☐

State specifically where your organizing document meets this requirement, such as a reference to a particular article or section in your organizing document (Page/Article/Paragraph) or state that you rely on state law.

1b Do you or will you provide scholarships, fellowships, educational loans, or other educational grants to individuals, including grants for travel, study, or other similar purposes? ○ Yes ○ No
If "Yes," complete Schedule H - Section II.

1c Are you a private operating foundation? ○ Yes ○ No

To be a private operating foundation you must engage directly in the active conduct of charitable, religious, educational, and similar activities, as opposed to indirectly carrying out these activities by providing grants to individuals or other organizations.

Part VII **Foundation Classification** *(continued)*

1d Describe how you meet the requirements for private operating foundation status, including how you meet the income test and either the assets test, the endowment test, or the support test. If you've been in existence for less than one year, describe how you are likely to satisfy the requirements for private operating foundation status.

2 If you have been in existence more than 5 years, you must confirm your public support status. To confirm your qualification as a public charity described in 509(a)(1) and 170(b)(1)(A)(vi) in existence for five or more tax years, you must have received one-third or more of your total support from governmental agencies, contributions from the general public, and contributions or grants from other public charities; or 10% or more of your total support from governmental agencies, contributions from the general public, and contributions or grants from other public charities and the facts and circumstances indicate you are a publicly supported organization. Calculate whether you meet this support test for your most recent five-year period.

i. Did you receive contributions from any person, company, or organization whose gifts totaled more than the 2% amount of line 8 in Part VI-A? ◯ Yes ◯ No

If "Yes," identify each person, company, or organization by letter (A, B, C, etc.) and indicate the amount contributed by each. Keep a list showing the name of and amount contributed by each of these donors for your records.

ii. Based on your calculations, did you receive at least one-third of your support from public sources or did you normally receive at least 10 percent of your support from public sources and you have other characteristics of a publicly supported organization? ◯ Yes ◯ No

2a If you have been in existence more than 5 years, you must confirm your public support status. To confirm your qualification as a public charity described in 509(a)(2) in existence for five or more tax years, you must have normally received more than one-third of your support from contributions, membership fees, and gross receipts from activities related to your exempt functions, or a combination of these sources, and not more than one-third of your support from gross investment income and net unrelated business income. Calculate whether you meet this support test for your most recent five-year period.

i. Did you receive amounts from any disqualified persons? ◯ Yes ◯ No

If "Yes," identify each disqualified person by letter (A, B, C, etc.) and indicate the amount contributed by each. Keep a list showing the name of and amount contributed by each of these donors for your records.

ii. Did you receive amounts from individuals or organizations other than disqualified persons that exceeded the greater of $5,000 or 1% of the amount on line 10 of Part VI-A Statement of Revenues and Expenses? ◯ Yes ◯ No

If "Yes," identify each individual or organization by letter (A, B, C, etc.) and indicate the amount contributed by each. Keep a list showing the name of and amount contributed by each of these donors for your records.

iii. Based on your calculations, did you normally receive more than one-third of your support from a combination of gifts, grants, contributions, membership fees, and gross receipts (from permitted sources) from activities related to your exempt functions and normally receive not more than one-third of your support from investment income and unrelated business taxable income? ◯ Yes ◯ No

Part VIII Effective Date

In general, a determination letter recognizing exemption of an organization described in section 501(c)(3) is effective as of the date of formation of an organization if: (1) its purposes and activities prior to the date of the determination letter have been consistent with the requirements for exemption; and (2) it has filed an application for recognition of exemption within 27 months from the end of the month in which it was organized.

1 Are you submitting this application within 27 months of the end of the month in which you were legally formed? ☑ Yes ☐ No

If "No," complete Schedule E.

Part IX Annual Filing Requirements

If you fail to file a required information return or notice for three consecutive years, your exempt status will be automatically revoked.

1 Certain organizations are not required to file annual information returns or notices (Form 990, Form 990-EZ, or Form 990-N, e-Postcard). If you are granted tax-exemption, are you claiming to be excused from filing Form 990, Form 990-EZ, or Form 990-N? ☐ Yes ☑ No

If "Yes," are you claiming you are excepted from filing because you are:

- ☐ A church or association of churches
- ☐ An integrated auxiliary (such as a men's or women's organization, religious school, mission society, or religious group)
- ☐ A church-affiliated organization (other than a section 509(a)(3) organization) that is exclusively engaged in managing funds or maintaining retirement programs and is described in Revenue Procedure 96-10, 1996-1 C.B. 577
- ☐ A school below college level affiliated with a church or operated by a religious order
- ☐ A mission society (other than a section 509(a)(3) supporting organization) sponsored by, or affiliated with, one or more churches or church denominations, if more than half of the society's activities are conducted in, or directed at, persons in foreign countries
- ☐ An affiliate of a governmental unit that meets the requirements of Revenue Procedure 95-48, 1995-2 C.B. 418 (other than a section 509(a)(3) supporting organization)
- ☐ Other (describe)

Part X Signature

☑ I declare under the penalties of perjury that I am authorized to sign this application on behalf of the above organization and that I have examined this application, and to the best of my knowledge it is true, correct, and complete.

Jonathan Starr
(Type name of signer)

EXECUTIVE DIRECTOR
(Type title or authority of signer)

04/14/2025
(Date)

Upload checklist:

- [x] Organizing document (and any amendments)
- [x] Bylaws, if adopted
- [x] Form 2848, Power of Attorney and Declaration of Representative (if applicable)
- [ ] Form 8821, Tax Information Authorization (if applicable)
- [x] Supplemental responses (if applicable)
- [ ] Expedited handling request (if applicable)

Schedule H. Organizations Providing Scholarships, Fellowships, Educational Loans, or Other Educational Grants to Individuals and Private Foundations Requesting Advance Approval of Individual Grant Procedures

Section I **Public charities and private foundations complete lines 1 through 8 of this section.**

1 Describe the types of educational grants you provide to individuals, such as scholarships, fellowships, loans, etc., including the purpose, number and amount(s) of grants, how the program is publicized, and if you award educational loans, the terms of the loans.

See Supplemental Responses.

2 Do you maintain case histories showing recipients of your scholarships, fellowships, educational loans, or other educational grants, including names, addresses, purposes of awards, amount of each grant, manner of selection, and relationship (if any) to officers, trustees, or donors of funds to you? If "No," explain.

(●) Yes ( ) No

3 Describe the specific criteria you use to determine who is eligible for your program (for example, eligibility selection criteria could consist of graduating high school students from a particular high school who will attend college, writers of scholarly works about American history, etc.).

See Supplemental Responses.

4 Describe the specific criteria you use to select recipients (for example, specific selection criteria could consist of prior academic performance, financial need, etc.).

See Supplemental Responses.

Schedule H. Organizations Providing Scholarships, Fellowships, Educational Loans, or Other Educational Grants to Individuals and Private Foundations Requesting Advance Approval of Individual Grant Procedures *(continued)*

5 Describe any requirement or condition you impose on recipients to obtain, maintain, or qualify for renewal of a grant (for example, specific requirements or conditions could consist of attendance at a four-year college, maintaining a certain grade point average, teaching in public school after graduation from college, etc.).

See Supplemental Responses.

6 Describe your procedures for supervising the scholarships, fellowships, educational loans, or other educational grants. Explain whether you obtain reports and grade transcripts from recipients, or you pay grants directly to a school under an arrangement whereby the school will apply the grant funds only for enrolled students who are in good standing. Also, describe your procedures for taking action if the terms of the award are violated.

See Supplemental Responses.

7 How do you determine who is on the selection committee for the awards made under your program?

See Supplemental Responses.

8 Are relatives of members of the selection committee, or of your officers, directors, or substantial contributors eligible for awards made under your program? If "Yes," what measures do you take to ensure unbiased selections? ● Yes ○ No

See Supplemental Responses.

Do not complete the rest of Schedule H. If you are a private foundation, you will be directed to complete Section II of Schedule H later in the application.

Part VIII Effective Date

In general, a determination letter recognizing exemption of an organization described in section 501(c)(3) is effective as of the date of formation of an organization if: (1) its purposes and activities prior to the date of the determination letter have been consistent with the requirements for exemption; and (2) it has filed an application for recognition of exemption within 27 months from the end of the month in which it was organized.

1 Are you submitting this application within 27 months of the end of the month in which you were legally formed? [X] Yes [ ] No

If "No," complete Schedule E.

Part IX Annual Filing Requirements

If you fail to file a required information return or notice for three consecutive years, your exempt status will be automatically revoked.

1 Certain organizations are not required to file annual information returns or notices (Form 990, Form 990-EZ, or Form 990-N, e-Postcard). If you are granted tax-exemption, are you claiming to be excused from filing Form 990, Form 990-EZ, or Form 990-N? [ ] Yes [X] No

If "Yes," are you claiming you are excepted from filing because you are:

- [ ] A church or association of churches
- [ ] An integrated auxiliary (such as a men's or women's organization, religious school, mission society, or religious group)
- [ ] A church-affiliated organization (other than a section 509(a)(3) organization) that is exclusively engaged in managing funds or maintaining retirement programs and is described in Revenue Procedure 96-10, 1996-1 C.B. 577
- [ ] A school below college level affiliated with a church or operated by a religious order
- [ ] A mission society (other than a section 509(a)(3) supporting organization) sponsored by, or affiliated with, one or more churches or church denominations, if more than half of the society's activities are conducted in, or directed at, persons in foreign countries
- [ ] An affiliate of a governmental unit that meets the requirements of Revenue Procedure 95-48, 1995-2 C.B. 418 (other than a section 509(a)(3) supporting organization)
- [ ] Other (describe)

Part X Signature

[X] I declare under the penalties of perjury that I am authorized to sign this application on behalf of the above organization and that I have examined this application, and to the best of my knowledge it is true, correct, and complete.

Jonathan Starr
(Type name of signer)

Executive Director
(Type title or authority of signer)

4/14/2025
(Date)

Delaware

The First State

I, CHARUNI PATIBANDA-SANCHEZ, SECRETARY OF STATE OF THE STATE OF DELAWARE, DO HEREBY CERTIFY THE ATTACHED IS A TRUE AND CORRECT COPY OF THE CERTIFICATE OF INCORPORATION OF "OPEN SOURCE ENDOWMENT FOUNDATION", FILED IN THIS OFFICE ON THE FOURTEENTH DAY OF FEBRUARY, A.D. 2025, AT 5:05 O`CLOCK P.M.

Charuni Patibanda-Sanchez, Secretary of State

10100912 8100
SR# 20250553480

Authentication: 202946084
Date: 02-16-25

You may verify this certificate online at corp.delaware.gov/authver.shtml

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State of Delaware
Secretary of State
Division of Corporations
Delivered 05:05 PM 02/14/2025
FILED 05:05 PM 02/14/2025
SR 20250553480 - File Number 10100912

STATE *of* DELAWARE
CERTIFICATE *of* INCORPORATION
of OPEN SOURCE ENDOWMENT FOUNDATION
a NONPROFIT NONSTOCK CORPORATION

The undersigned incorporator hereby certifies as follows:

1. The name of this corporation is Open Source Endowment Foundation.

2. Its registered office in the State of Delaware is to be located at 1209 Orange Street, Wilmington, County of New Castle, Delaware 19801. The name of this corporation's registered agent at such address is National Registered Agents, Inc.

3. This corporation is a nonprofit nonstock corporation organized under the General Corporation Law of the State of Delaware ("DGCL") and is not authorized to issue any capital stock. The specific and primary purpose of this corporation is to engage in charitable and educational activities within the meaning of Section 501(c)(3) of the Internal Revenue Code of 1986, as amended (the "Code").

4. This corporation is organized and operated exclusively for exempt purposes within the meaning of Section 501(c)(3) of the Code. Notwithstanding any other provision of this certificate, this corporation shall not carry on any activities not permitted to be carried on (1) by a corporation exempt from federal income tax under Section 501(c)(3) of the Code, or (2) by a corporation, contributions to which are deductible under Sections 170(c)(2), 2055(a)(2), 2106(a)(2)(A)(ii), 2522(a)(2), or 2522(b)(2) of the Code. Except as permitted by law, no substantial part of the activities of this corporation shall consist of the carrying on of propaganda or otherwise attempting to influence legislation, nor shall this corporation participate in, or intervene in (including the publication or distribution of statements), any political campaign on behalf of or in opposition to any candidate for public office.

5. The property of this corporation is irrevocably dedicated to charitable purposes, and no part of the net income or assets of this corporation shall ever inure to the benefit of any director, officer, or member of this corporation, or any other private person. Upon the winding up and dissolution of this corporation and after paying or adequately providing for the debts and obligations of this corporation, the remaining assets shall be distributed to a nonprofit fund, foundation or corporation which is organized and operated exclusively for charitable purposes and which has established its tax exempt status under Section 501(c)(3) of the Code.

6. This corporation shall have one or more members, and the conditions of membership shall be stated in the Bylaws.

7. The name and mailing address of the incorporator are as follows:

Chad Whitacre
74 E Glenwood Ave Unit #5756
Smyrna, DE 19977

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8. The personal liability of the directors and any persons performing the duties of directors of this corporation is hereby eliminated or limited to the fullest extent permitted by DGCL Section 102(b)(7) as the same may be hereafter amended and supplemented.

9. Any amendment to this Certificate must be approved by the Board of Directors of this corporation. In addition, any amendment to this Certificate requires approval by the members of this corporation in accordance with DGCL Section 242(b)(3). The required vote of the members to approve shall be as provided in the Bylaws of this corporation.

10. This corporation may, in accordance with the authority granted by DGCL Section 141, adopt Bylaws that establish and modify the voting power of different classes of directors, including giving certain classes of directors greater voting power (e.g. a veto power), in a manner that deviates from the provisions set forth in DGCL 141(j).

11. Only the members of this corporation may adopt, amend, or repeal the Bylaws of this corporation. The required vote of the members shall be as provided in the Bylaws of this corporation..

DocuSigned by:

By: Chad W. L. Whitacre

A51E28EC693746F...

Chad Whitacre, Incorporator

Date: 2/14/2025

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BYLAWS
OF
OPEN SOURCE ENDOWMENT FOUNDATION

ARTICLE I
OFFICES

Section 1.1 **Registered Office**. As a Delaware nonprofit nonstock corporation, this corporation shall maintain a registered office in the State of Delaware, at the location specified in the Certificate of Incorporation or designated by the Board of Directors of this corporation.

Section 1.2 **Principal Place of Business.** This corporation's principal place of business is different from its registered office, and may be located at any place as may be designated by the Board of Directors of this corporation, including a place outside of the State of Delaware.

ARTICLE II
MEMBERS

Section 2.1 **Members**. Except as provided in Section 9.1 below, this corporation shall initially have one class of members for purposes of the Delaware General Corporation Law ("DGCL"), with rights and privileges set in these Bylaws and as further defined by the Board of Directors in a separate Membership Policy that may be adopted and amended by the Board from time to time. The Membership Policy will further define membership criteria, minimal donation, responsibilities, processes for engagement in this corporation and other related matters, provided that the members' rights as "members" within the meaning of DGCL shall be limited to electing Member-Elected Directors as provided in Section 3.2(b) below. At such time as the number of Member-Elected Directors is set at a number greater than zero (0), this corporation shall amend these Bylaws to incorporate provisions addressing the process for exercising such voting rights in compliance with the DGCL and the corporation's goal of conducting business through remote, asynchronous, and electronic communication to the fullest extent permissible.

Section 2.2 **Criteria; Term; Transferability**. The members shall consist of those individuals who have satisfied the criteria defined in the Membership Policy. Membership shall have no expiration, unless it is specified in the Membership Policy. No member of this corporation shall be personally liable for the debts, liabilities, or obligations of this corporation. Memberships in this corporation, or any right arising therefrom, may not be transferred or assigned.

Section 2.3 **Advisory Role**. The Board shall consult members on key strategic matters, including but not limited to the grantee selection model and other major organizational decisions. Member input shall be considered by the Board but shall not be binding.

ARTICLE III
BOARD OF DIRECTORS

Section 3.1 **Powers**. This corporation shall have powers to the full extent allowed by law. All powers and activities of this corporation shall be exercised and managed by the Board of Directors of this corporation directly or, if delegated, under the ultimate direction of the Board.

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Section 3.2 **Directors**. The total number of directors shall be not less than three (3) nor more than eleven (11), with the exact authorized number of directors to be fixed from time to time by the Board of Directors. The Board shall be composed of three classes of directors:

(a) Founding Director. There shall be one (1) Founding Director seat, which Konstantin Vinogradov shall have an exclusive right to hold. This seat is automatically eliminated in fifteen (15) years since the incorporation or earlier at Mr. Vinogradov's sole discretion.

(b) Member-Elected Directors. Directors elected by the Members as per these Bylaws. The Board shall have sole discretion to determine the number of such directors, provided that the number shall be between zero (0) and five (5).

(c) Board-Elected Directors. Directors elected by the Board as per these Bylaws. The number of Board-Elected Directors is equal to the total number of directors authorized by the Board, minus Founding Director and the number of Member-Elected Directors.

Section 3.3 **Voting Rights**. All directors, regardless of how they are elected, shall have equal voting rights on matters before the Board..

Section 3.4 **Membership**. All directors shall be Members of this corporation.

Section 3.5 **Election and Terms**. Except for the Founding Director and the other initial directors appointed by the incorporator, directors shall be elected as follows:

(a) Board-Elected Directors shall be selected from among the Members of the corporation and elected by a majority vote of the Board of Directors then in office. Each Board-Elected Director shall serve a term of three (3) years.

(b) Member-Elected Directors shall be selected from among the Members of the corporation and elected by a majority of the votes of the Members participating in a vote as to which quorum is satisfied. Each Member-Elected Director shall serve a term of two (2) years.

a. Notwithstanding the foregoing, a director's initial term may be set by the Board for a greater or lesser number of years for the purpose of maintaining a staggered Board (i.e., a Board where a roughly equal number of director terms end each year), with such adjustment noted in the resolution or action electing such director. Each director shall hold office until such director's successor is elected and qualified or until such director's earlier death, resignation, or removal. A director who has served two (2) consecutive terms must remain off the Board for at least one year before becoming eligible for re-election.

Section 3.6 **Resignation**. Any director may resign at any time upon notice given in writing addressed to any director or officer of this corporation other than themselves or by electronic transmission addressed to any director or officer of this corporation other than themselves. A resignation is effective when the resignation is delivered unless the resignation specifies a later effective date. Unless otherwise specified in that notice, the acceptance of the resignation shall not be necessary to make it effective.

Section 3.7 **Removal**. Any Board-Elected Director may be removed at any time by the Board with or without cause. Any Member-Elected Director may be removed at any time by the Members with or without cause or by two-thirds of the Board. Any Board-Elected Director or Member-Elected Director that misses

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three (3) consecutive meetings shall be automatically removed from the Board without any action required by the Board or the Members.

Section 3.8 **Vacancies**. A vacancy shall be deemed to exist on the Board in the event that the actual number of directors is less than the authorized number for any reason. Vacancies with respect to the Board-Elected Directors and Member-Elected Directors may be filled by the Board of Directors for the unexpired portion of the term. A vacancy in the Founding Director position shall not be filled. No reduction in the number of directors shall have the effect of removing any director prior to the expiration of his or her term of office.

Section 3.9 **Regular Meetings**. Regular meetings of the Board of Directors shall be held at such times, places and dates as fixed by the Board. The Board shall hold a meeting at least four timers per year. Regular meetings of the Board held pursuant to this Section may be held without notice.

Section 3.10 **Online Participation.** Directors may participate in a meeting through use of conference telephones, electronic video screen, or similar communications equipment so long as all directors participating in such meeting can hear one another. Such participation constitutes presence in person at such meeting.

Section 3.11 **Action Without a Meeting**. Any action required or permitted to be taken by the Board of Directors may be taken without a meeting if all directors individually or collectively consent in writing to such action. Such written consent or consents shall be filed with the minutes of the proceedings of the Board. Such action by written consent shall have the same force and effect as a unanimous vote of such directors.

Section 3.12 **Special Meetings**. Special meetings of the Board may be called by the Chair of the Board, or the Secretary or any three (3) directors.

Section 3.13 **Place of Meetings**. Meetings of the Board of Directors may be held at a location inside or outside of the state of Delaware, which is fixed by the Board of Directors or, in the case of a special meeting, by the person or persons calling the special meeting.

Section 3.14 **Notice of Meetings**. Notice of the annual meeting and any special meetings of the Board of Directors shall state the date, place, and time of the meeting and shall be given to each director at least one week before such meeting by mail or electronic transmission.

Section 3.15 **Waiver of Notice**. Whenever notice is required to be given under any provision of these Bylaws, a written waiver, signed by the person entitled to notice, or a waiver by electronic transmission by the person entitled to notice, whether before or after the time stated therein, shall be deemed equivalent to notice. Attendance of a person at a meeting shall constitute a waiver of notice of such meeting, except when the person attends a meeting for the express purpose of objecting, at the beginning of the meeting, to the transaction of any business because the meeting is not lawfully called or convened. Neither the business to be transacted at, nor the purpose of, any regular or special meeting of the Board of Directors or committee of the Board of Directors need be specified in any written waiver of notice or any waiver by electronic transmission. All waivers, consents, and approvals shall be filed with the corporate records or made a part of the minutes of the meeting. Such filing shall be in paper form if the minutes are maintained in paper form and shall be in electronic form if the minutes are maintained in electronic form.

Section 3.16 **Quorum; Required Vote**. A majority of the total number of directors then in office shall constitute a quorum of the Board, provided that the Founding Director's presence (or the Founding Director's written waiver of this provision of the Bylaws with respect to a particular decision) is required

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for a quorum. Except as otherwise required by the Certificate of Incorporation, these Bylaws or the DGCL, the act of a majority of the directors present at a meeting at which a quorum is present shall be the act of the Board. Each director shall be entitled to one vote. Notwithstanding the foregoing, in the first twelve (12) years since the incorporation, no act of the Board may be approved without the non-negative vote of the Founding Director, if his seat is held on the date of voting.

Section 3.17 **Board Advisors**. The Board may appoint members or non-members to serve as advisors at the pleasure of the Board and provide it with recommendations on specific topics. Advisors may not exercise the authority of the Board to make decisions on behalf of this corporation.

Section 3.18 **Board Committees**. The Board may establish committees from among board directors, officers, advisors and members of this corporation, each consisting of three or more people for any activities carried out for the benefit of the corporation. Each such committee will serve at the pleasure of the Board. The Board determines if a committee may or may not exercise the authority of the Board to make decisions on behalf of this corporation. In decision-making committees, only committee members who are also directors of this corporation shall have voting rights.

Section 3.19 **Compensation**. Directors of the Board are not entitled to any compensation for their service. The Board may only authorize the reimbursement of actual reasonable expenses incurred by a director in carrying out his or her duties as a director.

Section 3.20 **Inspection**. Every director shall have the right to examine this corporation's list of members and its other books and records for a purpose reasonably related to the director's position as a director.

ARTICLE IV
OFFICERS

Section 4.1 **Officers.** This corporation shall have a Chair of the Board, an Executive Director, a Secretary, a Treasurer and such other officers with such titles and duties as the Board of Directors may determine. Any two or more offices may be held by the same person, except that the Chair of the Board may not service concurrently as the Secretary. Other than the Chair of the Board, which is required to be selected from among the directors, an officer may but is not required to be selected from among the directors.

Section 4.2 **Membership.** All officers shall be Members of this corporation.

Section 4.3 **Election and Terms**. The officers of this corporation shall be elected by the Board of Directors for the term not exceeding three (3) years, and each shall serve at the pleasure of the Board, subject to the rights, if any, of an officer under any contract of employment. Each officer shall hold office until his or her successor is elected and qualified or until his or her earlier resignation or removal.

Section 4.4 **Removal**. Subject to the rights, if any, of an officer under any contract of employment, any officer may be removed, with or without cause, by the Board of Directors or by an officer on whom such power of removal may be conferred by the Board of Directors.

Section 4.5 **Resignation**. Any officer may resign at any time by giving written notice to any director or officer of this corporation other than themselves or by electronic transmission addressed to any director or officer of this corporation other than themselves. A resignation is effective when delivered unless the resignation specifies a later effective date or an effective date determined upon the happening of an event

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or events, and unless otherwise specified in that notice, the acceptance of the resignation shall not be necessary to make it effective. Any resignation is without prejudice to the rights, if any, of this corporation under any contract to which the officer is a party.

Section 4.6 **Vacancies**. A vacancy in any office for any reason shall be filled in the same manner as these Bylaws provide for election to that office.

Section 4.7 **Chair of the Board**. The Chair of the Board shall preside at all meetings of the Board of Directors and have such other powers and duties as may be prescribed by the Board or these Bylaws.

Section 4.8 **Executive Director**. The Executive Director shall be the chief executive officer of this corporation and shall, subject to the control of the Board, generally supervise, direct, and control the business and operations of this corporation.

Section 4.9 **Secretary**. The Secretary shall supervise the keeping of a full and complete record of the proceedings of the Board of Directors, its committees and the membership of this corporation, shall supervise the giving of such notices as may be proper or necessary, shall supervise the keeping of the minute books of this corporation, and shall have such other powers and duties as may be prescribed by the Board or these Bylaws.

Section 4.10 **Treasurer**. The Treasurer shall supervise the charge and custody of all funds of this corporation, the deposit of such funds in the manner prescribed by the Board of Directors, and the keeping and maintaining of adequate and correct accounts of this corporation's properties and business transactions, shall render reports and accountings as required, and shall have such other powers and duties as may be prescribed by the Board or these Bylaws.

Section 4.11 **Compensation**. The compensation of the officers is determined by the Board of Directors, and no officer shall be prevented from receiving such compensation by reason of the fact that such officer is also a board director of this corporation.

ARTICLE V
INTERESTED DIRECTOR OR OFFICER TRANSACTIONS

Section 5.1 **Voidability of Transactions**. No contract or transaction between this corporation and any of its directors or officers, any organization in which one or more of this corporation's directors or officers has or have a financial interest, or any organization for which a director or officer of this corporation also serves as a director or officer, shall be void or voidable solely for that reason, or solely because the director or officer is present at or participates in the meeting of the Board or Board Committee which authorizes the contract or transaction, or solely because any such director's or officer's vote was counted for such purpose, if:

(a) the material facts as to the director's or officer's relationship or interest, and as to the contract or transaction, are disclosed or are known to the Board or the Board Committee, and the Board or Board Committee in good faith authorizes the contract or transaction by an affirmative vote of a majority of the disinterested directors, even though the disinterested directors be less than a quorum; or

(b) the contract or transaction is fair to this corporation as of the time it is authorized, approved, or ratified by the Board or Board Committee.

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Section 5.2 **Quorum**. Common or interested directors may be counted in determining the presence of a quorum at a meeting of the Board or of a Board Committee which authorizes a contract or transaction described in this Article.

Section 5.3 **Conflict of Interest Policy**. Each director and officer of this corporation shall comply with any policies of this corporation regarding conflicts of interest.

ARTICLE VI
GRANTS ADMINISTRATION

Section 6.1 **Purpose of Grants**. This corporation shall have the power to make grants and contributions and to render other financial assistance for the purposes expressed in this corporation's Certificate. For avoidance of doubt, as long as grants are restricted to the purposes of this corporation, grants may be made to both nonprofit organizations and other organizations.

Section 6.2 **Board of Directors Oversight**. The Board, or any person or persons on whom such power may be conferred by the Board, shall make policy with regard to grants. The Board shall retain ultimate control over all grants, contributions, and other financial assistance given by this corporation.

Section 6.3 **Refusal**. The Board, in its absolute discretion, shall have the right to refuse to make any grants or contributions, or to render other financial assistance, for any or all the purposes for which the funds are requested.

Section 6.4 **Withdrawal.** The Board, in its absolute discretion, shall have the right to withdraw its approval of any grant at any time and use the funds for other purposes within the scope of the purposes expressed in the Certificate, subject to any charitable trust imposed on such funds and any rights of third parties under any contract relating to such grant.

Section 6.5 **Accounting**. The Board shall determine under what circumstances to require that grantees furnish a periodic accounting to show that the funds granted by this corporation were expended for the purposes that were approved by the Board.

Section 6.6 **Restrictions on Contributions**. Unless otherwise determined by resolution of the Board in particular cases, this corporation shall retain complete control and discretion over the use of all contributions it receives, and all contributions received by this corporation from solicitations for specific grants shall be regarded as for the use of this corporation and not for any particular organization or individual mentioned in the solicitation. This corporation may accept contributions designated by the donor to be used for one or more foreign projects only if the Board of Directors of this corporation has approved in advance the charitable activity for which the donation is being made and retains discretion and control over such funds.

ARTICLE VII
INDEMNIFICATION

Section 7.1 **Definitions**. As used in this Article, the following terms will have the following meanings:

(b) "Action" means any threatened, pending, or completed action, suit, proceeding or inquiry (brought in the right of this corporation or otherwise), whether civil, criminal, administrative, or investigative, and whether formal or informal, including appeals arising

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from or in connection with the acts or omissions of this corporation or any member acting within the scope of his or her role with this corporation.

(c) "Eligible Person" means: (1) any individual who is a former or current director or officer of this corporation; (2) any former or current director or officer of this corporation, who while a director or officer of this corporation, is or was serving at the request of this corporation as a director, officer, partner, trustee, employee, or agent of another corporation, partnership, joint venture, trust, or other enterprise, which includes, without limitation, employee benefit plans; and (3) the foregoing persons' heirs, executors, guardians, administrators, assigns, and any other legal representatives.

(d) "Fines" includes, without limitation, any excise taxes assessed on a person with respect to an employee benefit plan.

(e) "Indemnified Person" means: any Eligible Person who was, or is, a party, or is threatened to be made a party to, or is involved in (including as a witness), any Action by reason of the fact that the person is an Eligible Person.

Section 7.2 **Indemnification for Indemnified Persons**. This corporation shall indemnify any Indemnified Person, for and against all expenses (including attorneys' fees), judgments, Fines and amounts paid in settlement actually and reasonably incurred by that Indemnified Person in connection with an Action. Notwithstanding the foregoing, this corporation shall indemnify any Indemnified Person seeking indemnification in connection with an Action (or part of an Action) initiated by that person only if that Action (or part of that Action) was authorized by the Board.

Section 7.3 **Advancement of Expenses**. This corporation may pay expenses as incurred by any Indemnified Person in connection with any Action; *provided, that,* if these expenses are to be paid in advance of the final disposition of an Action, then the payment of expenses will be made only upon delivery to this corporation of an undertaking, by or on behalf of the person, to repay all amounts so advanced if it is ultimately determined that the person is not entitled to be an Indemnified Person or otherwise.

Section 7.4 **Insurance**. This corporation may purchase and maintain insurance on behalf of any Indemnified Person against any liability asserted against that person, whether or not this corporation would have the power to indemnify the person against that liability under the provisions of this Article or otherwise.

Section 7.5 **Scope of this Article**. The provisions of this Article will be applicable to all Actions made or commenced after the adoption of this Article, whether arising from acts or omissions occurring before or after its adoption. The provisions of this Article will be deemed to be a contract between this corporation and each director or officer who serves in that capacity at any time while this Article and the relevant provisions of the laws of the State of Delaware and other applicable law, if any, are in effect, and any repeal or modification of this Article will not adversely affect any right or protection of any Indemnified Person in respect of any act or omission occurring prior to the time of the repeal or modification. The provisions of this Article shall apply to the fullest extent permitted by law.

Section 7.6 **Severability**. If any provision of this Article will be found to be invalid or limited in application by reason of any law or regulation, that finding will not affect the validity of the remaining provisions of this Article. The rights of indemnification provided in this Article will neither be exclusive of, nor be deemed in limitation of, any rights to which any Eligible Person may otherwise be entitled or permitted by contract, the Certificate of Incorporation, vote of the Board, or otherwise, or as a matter of law, both as to actions in the person's official capacity and actions in any other capacity while holding that

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office, it being the policy of this corporation that indemnification of any Indemnified Person will be made to the fullest extent permitted by law.

Section 7.7 **Indemnification of Employees and Agents**. This corporation may, by vote of the Board, provide indemnification and advancement of expenses to employees and agents of this corporation with the same scope and effect as the foregoing indemnification of and advancement of expenses to directors and officers.

ARTICLE VIII
FINANCIAL MATTERS AND CONTRACTS

Section 8.1 **Fiscal Year**. The fiscal year of the Foundation shall begin on the first day of January and end on the last day of December, and may be changed, by resolution of the Board of Directors.

Section 8.2 **Endowment**. The Board shall establish an endowment fund to accumulate the majority of donations received by the corporation, which shall be held, managed, and spent as a endowed fund within the meaning of Delaware's Uniform Prudent Management of Institutional Funds Act. The proceeds from the endowment shall be used exclusively for charitable purposes in accordance with the corporation's Bylaws and Certificate. In addition, the Board may establish other unrestricted funds or funds with different restriction

Section 8.3 **Contracts, Notes, and Checks**. All contracts entered into on behalf of this corporation must be authorized by the Board of Directors or any person or persons on whom such power may be conferred by the Board, and, except as otherwise provided by law, every check, draft, promissory note, money order, or other evidence of indebtedness of this corporation shall be signed by any person or person on whom such power may be conferred by the Board.

ARTICLE IX
MISCELLANEOUS

Section 9.1 **Certificate and Bylaws Amendments**. As provided in the Certificate of Incorporation, (A) the Certificate of Incorporation may not be amended without the approval of the members, and (B) only the members of this corporation may adopt, amend, or repeal the Bylaws of this corporation. For purposes of this Section, the Board of Directors shall be deemed to be a separate class of members, and all voting rights of the members under this Section shall be exercised by such class voting alone, without a vote of the members described in Article II.

Section 9.2 **Governing Law**. These Bylaws shall be construed and interpreted in accordance with the laws of the State of Delaware as amended from time to time, so as to give full effect and validity to the intent and meaning of these Bylaws.

Section 9.3 **Electronic Transmission**. Directors, officers, and members may demonstrate their consent to actions or provide written notice through an electronic transmission (e.g. emails) to the Secretary or as otherwise approved by the Board, provided that the electronic transmission is delivered with information from which this corporation can determine: (A) that the electronic transmission was transmitted by the director, officer, or member (or by a person or persons authorized to act for the director, officer, or member); and (B) the date on which such director, officer, or member or authorized person or persons transmitted such electronic transmission.

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CERTIFICATE OF SECRETARY

I, Chad Whitacre, certify that I am Secretary of Open Source Endowment Foundation, a Delaware nonprofit nonstock corporation, and that the above Bylaws are the Bylaws of this corporation as adopted by Action of Sole Incorporator effective as of 3/31/2025.

DATED: 3/31/2025

DocuSigned by:
Chad W. L. Whitacre
A5JE28EC693746F...

Chad Whitacre, Secretary

Form **2848**
(Rev. January 2021)
Department of the Treasury
Internal Revenue Service

Power of Attorney and Declaration of Representative

▶ Go to *www.irs.gov/Form2848* for instructions and the latest information.

OMB No. 1545-0150

For IRS Use Only
Received by:
Name
Telephone
Function
Date / /

Part I Power of Attorney

Caution: A separate Form 2848 must be completed for each taxpayer. Form 2848 will not be honored for any purpose other than representation before the IRS.

1 Taxpayer information. Taxpayer must sign and date this form on page 2, line 7.

Taxpayer name and address	Taxpayer identification number(s)	
Open Source Endowment Foundation 74 E Glenwood Ave Unit #5756 Smyrna, DE 19977	33-3502715	
	Daytime telephone number	Plan number (if applicable)

hereby appoints the following representative(s) as attorney(s)-in-fact:

2 Representative(s) must sign and date this form on page 2, Part II.

Name and address	
Karl Mill, Mill Law Center 3415 S Sepulveda Blvd, Suite 420 Los Angeles, CA 90034 **Check if to be sent copies of notices and communications** ☑	CAF No. 0311-39814R PTIN P01781068 Telephone No. 415-234-3349 Fax No. 415-363-4377 Check if new: Address ☑ Telephone No. ☐ Fax No. ☐
Name and address Patrick Hogan, 3415 S Sepulveda Blvd, Suite 420, Los Angeles CA 90034 **Check if to be sent copies of notices and communications** ☒	CAF No. 0311-36401R PTIN P03122443 Telephone No. 513-341-5568 Fax No. 415-363-4377 Check if new: Address ☐ Telephone No. ☐ Fax No. ☐
Name and address (**Note:** IRS sends notices and communications to only two representatives.)	CAF No. PTIN Telephone No. Fax No. Check if new: Address ☐ Telephone No. ☐ Fax No. ☐
Name and address (**Note:** IRS sends notices and communications to only two representatives.)	CAF No. PTIN Telephone No. Fax No. Check if new: Address ☐ Telephone No. ☐ Fax No. ☐

to represent the taxpayer before the Internal Revenue Service and perform the following acts:

3 Acts authorized (you are required to complete line 3). Except for the acts described in line 5b, I authorize my representative(s) to receive and inspect my confidential tax information and to perform acts I can perform with respect to the tax matters described below. For example, my representative(s) shall have the authority to sign any agreements, consents, or similar documents (see instructions for line 5a for authorizing a representative to sign a return).

Description of Matter (Income, Employment, Payroll, Excise, Estate, Gift, Whistleblower, Practitioner Discipline, PLR, FOIA, Civil Penalty, Sec. 4980H Shared Responsibility Payment, etc.) (see instructions)	Tax Form Number (1040, 941, 720, etc.) (if applicable)	Year(s) or Period(s) (if applicable) (see instructions)
Application for Recognition of Exemption under Section 501(c)(3)	Form 1023	2025 - 2028

4 Specific use not recorded on the Centralized Authorization File (CAF). If the power of attorney is for a specific use not recorded on CAF, check this box. See *Line 4. Specific Use Not Recorded on CAF* in the instructions . . . . . ▶ ☑

5a Additional acts authorized. In addition to the acts listed on line 3 above, I authorize my representative(s) to perform the following acts (see instructions for line 5a for more information): ☐ Access my IRS records via an Intermediate Service Provider;
☐ Authorize disclosure to third parties; ☑ Substitute or add representative(s); ☐ Sign a return;

☐ Other acts authorized:

b **Specific acts not authorized.** My representative(s) is (are) not authorized to endorse or otherwise negotiate any check (including directing or accepting payment by any means, electronic or otherwise, into an account owned or controlled by the representative(s) or any firm or other entity with whom the representative(s) is (are) associated) issued by the government in respect of a federal tax liability.
List any other specific deletions to the acts otherwise authorized in this power of attorney (see instructions for line 5b):

6 **Retention/revocation of prior power(s) of attorney.** The filing of this power of attorney automatically revokes all earlier power(s) of attorney on file with the Internal Revenue Service for the same matters and years or periods covered by this form. If you **do not** want to revoke a prior power of attorney, check here . . . . . ▶ ☐

YOU MUST ATTACH A COPY OF ANY POWER OF ATTORNEY YOU WANT TO REMAIN IN EFFECT.

7 **Taxpayer declaration and signature.** If a tax matter concerns a year in which a joint return was filed, each spouse must file a separate power of attorney even if they are appointing the same representative(s). If signed by a corporate officer, partner, guardian, tax matters partner, partnership representative (or designated individual, if applicable), executor, receiver, administrator, trustee, or individual other than the taxpayer, I certify I have the legal authority to execute this form on behalf of the taxpayer.

▶ **IF NOT COMPLETED, SIGNED, AND DATED, THE IRS WILL RETURN THIS POWER OF ATTORNEY TO THE TAXPAYER.**

Signature	Date	Title (if applicable)
	04/14/2025	Executive Director

Print name	Print name of taxpayer from line 1 if other than individual
Jonathan Starr	Open Source Endowment Foundation

Part II Declaration of Representative

Under penalties of perjury, by my signature below I declare that:

- I am not currently suspended or disbarred from practice, or ineligible for practice, before the Internal Revenue Service;
- I am subject to regulations in Circular 230 (31 CFR, Subtitle A, Part 10), as amended, governing practice before the Internal Revenue Service;
- I am authorized to represent the taxpayer identified in Part I for the matter(s) specified there; and
- I am one of the following:

a Attorney—a member in good standing of the bar of the highest court of the jurisdiction shown below.

b Certified Public Accountant—a holder of an active license to practice as a certified public accountant in the jurisdiction shown below.

c Enrolled Agent—enrolled as an agent by the IRS per the requirements of Circular 230.

d Officer—a bona fide officer of the taxpayer organization.

e Full-Time Employee—a full-time employee of the taxpayer.

f Family Member—a member of the taxpayer's immediate family (spouse, parent, child, grandparent, grandchild, step-parent, step-child, brother, or sister).

g Enrolled Actuary—enrolled as an actuary by the Joint Board for the Enrollment of Actuaries under 29 U.S.C. 1242 (the authority to practice before the IRS is limited by section 10.3(d) of Circular 230).

h Unenrolled Return Preparer—Authority to practice before the IRS is limited. An unenrolled return preparer may represent, provided the preparer (1) prepared and signed the return or claim for refund (or prepared if there is no signature space on the form); (2) was eligible to sign the return or claim for refund; (3) has a valid PTIN; and (4) possesses the required Annual Filing Season Program Record of Completion(s). ***See* Special Rules and Requirements for Unenrolled Return Preparers *in the instructions for additional information.***

k Qualifying Student or Law Graduate—receives permission to represent taxpayers before the IRS by virtue of his/her status as a law, business, or accounting student, or law graduate working in a LITC or STCP. See instructions for Part II for additional information and requirements.

r Enrolled Retirement Plan Agent—enrolled as a retirement plan agent under the requirements of Circular 230 (the authority to practice before the Internal Revenue Service is limited by section 10.3(e)).

▶ **IF THIS DECLARATION OF REPRESENTATIVE IS NOT COMPLETED, SIGNED, AND DATED, THE IRS WILL RETURN THE POWER OF ATTORNEY. REPRESENTATIVES MUST SIGN IN THE ORDER LISTED IN PART I, LINE 2.**

Note: For designations d–f, enter your title, position, or relationship to the taxpayer in the "Licensing jurisdiction" column.

Designation—Insert above letter **(a–r).**	Licensing jurisdiction (State) or other licensing authority (if applicable)	Bar, license, certification, registration, or enrollment number (if applicable)	Signature	Date
a	CA	292459		04/14/2025
a	OH	0090826		04/14/2025

OPEN SOURCE ENDOWMENT FOUNDATION
74 E Glenwood Ave Unit #5756
Smyrna, DE 19977
EIN: 33-3502715

SUPPLEMENTAL RESPONSES TO FORM 1023

Part IV: Activities

Question 1: Narrative description of past, present, and planned activities.

Background

Open-source software ("OSS") is an essential public good that underpins the modern digital world, serving as the foundation for much of today's technology infrastructure. OSS is characterized by its freely accessible code, which allows developers to adapt, modify, and improve software for a wide range of uses. While OSS is crucial for innovation, security, and interoperability, many critical OSS projects struggle with sustainability due to inconsistent funding and maintenance challenges. Open Source Endowment Foundation (the "Applicant") is dedicated to addressing this gap by ensuring the continued viability of OSS through research, education, and targeted grantmaking. The Applicant's mission is to promote and sustainably fund (via the endowment model) the most critical free OSS as a public good, ensuring that essential software our world relies on remains freely available, secure, and actively maintained (the "Mission").

Activities

All of Applicant's activities will be conducted by its employees and such contractors or volunteers as it may identify in the future. All of Applicant's activities will be funded by a combination of donations from the public, corporate sponsors, and philanthropic grantmakers with an interest in supporting the Mission.

Educational and Research Activities (25% of time spent)

Applicant will engage in educational and research initiatives to support the sustainability of OSS. Activities will include:

- Educating the public about the crucial reliance of technology infrastructure on open OSS as a public good and the risks of its unsustainable maintenance.
- Researching and publicly sharing the best methods for identifying and supporting crucial but underfunded OSS projects.
- Publishing reports on best practices for maintaining OSS, funding models, and governance structures.
- Hosting workshops, webinars, and conferences to educate developers, policymakers, and the public on the importance of OSS and security.
- Supporting academic and independent research on OSS sustainability, licensing models, OSS funding. and economic impact.

- Encouraging participation from the OSS community, the scientific community, and the general public in advancing the Applicant's mission.

Grantmaking (75 % of time spent)
Applicant will make grants from its endowment to support OSS projects that advance charitable educational, or public purposes, such as expanding access to essential digital tools, improving technological infrastructure that supports public interest initiatives, or facilitating education and knowledge-sharing through widely used free and open software. Grants will only be made where the supported work demonstrably serves the public good, rather than private interests. Grants will be awarded to projects that contribute to the development, maintenance, and security of critical OSS infrastructure, particularly software that is widely used in public, academic, and nonprofit sectors. The Applicant will ensure that grant recipients meet eligibility criteria demonstrating their commitment to OSS principles, broad public benefit, and non-commercial use. As described in the response to Question 9 below, initially Applicant's grants will be made to either to other 501(c)(3) organizations or to other types of organizations but restricted to charitable and educational purposes in a manner consistent with legal requirements and best practices. Over time, Applicant will expand its grant offerings to individuals who work on projects in furtherance of the Mission.

To ensure that the Applicant's activities remain charitable under IRS guidelines, it will establish clear policies distinguishing between funding for public-benefit OSS projects and commercial software development. The Applicant will not subsidize proprietary or commercially-driven projects. Instead, it will prioritize funding for:

- Software that is freely accessible to the public and released under recognized OSS licenses.
- Projects that address security vulnerabilities, accessibility, and interoperability issues in widely-used OSS tools.
- Initiatives that provide educational resources, documentation, and training to expand the impact and usability of OSS software.

The Applicant's funding decisions will be guided by principles of public benefit, transparency, and alignment with charitable and educational purposes under applicable guidance. By implementing these safeguards, the Applicant will ensure its Mission contributes to the long-term sustainability of OSS in a manner consistent with its tax-exempt status.

Question 7: Rights in Intellectual Property. The Chair of the Board, KonstantinVinogradov, has individually applied for the trademark "Open Source Endowment" and, if the application is approved, will assign ownership of the trademark to the Applicant at no cost. Applicant will hold the rights to the trademark solely to protect the integrity and public understanding of its name and Mission.

Question 9: Grants, Loans, or Other Distributions to Organizations. As described in **Question 1** above, one of Applicant's primary charitable activities will be to grant funds to organizations and individual OSS contributors that advance the Mission.

Selection Process. Applicant will primarily make grants based on an internal review of any proposals or requests for funding. Any other grantees will be selected by the Board (or a person or persons to whom the Board has delegated selection authority), based on information obtained and provided by Applicant's staff or volunteers. Organizations that are controlled, directly or indirectly, by Applicant's employees, directors, officers, or individuals related by blood or marriage to them, will not be eligible to receive any direct goods, services, or funds from Applicant.

Grant Proposals. As described above in the response regarding "**Selection Process**," Applicant will internally source its own grantmaking opportunities and will not accept unsolicited grant proposals. Applicant may invite grant proposals for specific projects that further its exempt purposes. When appropriate, Applicant will require potential grantees to submit detailed grant proposals to describe how they would use funds provided by Applicant.

Recordkeeping. Applicant plans to keep a file on each grant that it makes. In that file, it will maintain a copy of the Board resolutions authorizing the grant (the original will be in Applicant's minute book), notes and records related to the pre-grant inquiry conducted prior to making the grant, a copy of the signed grant agreement between Applicant and its grantee (if applicable), a record of the grant funds that have been disbursed, copies of relevant accounting documents and reports on the use of the grant funds, and any other documents related to the grant.

Grant Agreements. If Applicant elects to make a grant to any organization that is not a U.S. public charity as defined under Code Sections 501(c)(3) and 509(a), Applicant will require each recipient organization to execute a grant agreement with Applicant prior to disbursing any grant funds. The format of Applicant's grant agreement has not yet been finalized. It will set forth the grantor's and grantee's responsibilities and require the grantee to use funds only for grant purposes, provide periodic updates on the use of grant funds, and to maintain appropriate records demonstrating the grantee's use of funds exclusively for the specified project purposes, and acknowledge the grantor's authority to withhold or recover funds if abuse occurs.

Oversight Procedures. The level of scrutiny will vary with the nature of the entity and the circumstances of the grant, as a grant to a U.S. public charity defined under Code Sections 501(c)(3) and 509(a) will require less oversight than a grant to a taxable organization or private party. Applicant will generally require periodic and final written reports and accounting of how grant funds are used, and will review them to determine whether further inquiry is warranted. Applicant will demand immediate repayment of misspent funds, and will withhold further funding if funds have been misspent.

Question 9(a): Grants to non-501(c)(3) Organizations. Applicant currently anticipates making distributions only to other nonprofit organizations that are exempt from federal income tax under Code Section 501(c)(3) or that are nonprofits organized for equivalent purposes under the jurisdictions in which they operate. If circumstances warrant and Applicant determines that it would be in furtherance of its exempt purposes to do so, Applicant may make grants to non-

charitable organizations exclusively for charitable or educational purposes, with Applicant retaining discretion and control (within the meaning of Revenue Ruling 68-489).

As described under the response to **Question 9** above, if Applicant chooses to provide funding to an organization that is not a public charity, as defined under Code Sections 501(c)(3) and 509(a), Applicant will first enter into a formal agreement with the organization before granting funds. The agreement will set forth the grantor's and grantee's responsibilities. It will require the grantee to use funds only for grant purposes, provide periodic written reports on the use of grant funds, provide ongoing written reports and accounting, and acknowledge the grantor's authority to withhold or recover funds if abuse occurs. Applicant has not yet made any distributions to any organizations that are not recognized by the Service as tax-exempt under Section 501(c)(3).

Question 9(b): Grants/Loans/Distributions to Foreign Organizations. Applicant has not yet identified any foreign organizations to which it will make grants.

Question 9(c): Contributors' Knowledge of Sole Authority. While Applicant will consider organizations suggested by individual donors, all funds received by Applicant will remain under the direction and control in accordance with Revenue Ruling 68-489 – in other words, Applicant's Board will always ensure that its funds are used exclusively for charitable and educational purposes. Applicant will make its decisions based on the criteria and procedures described above in answer to **Question 9**. Applicant understands the importance of clearly informing its donors that it retains the ultimate authority to use contributions made to it for its own exempt purposes. Applicant expects to make this information known to actual and potential donors through its website (once developed) and through print materials used in grant solicitation and other forms of fundraising. Applicant may also include disclosures of the kind contemplated by this question in its donation receipts.

Question 9(d): Pre-Grant Inquiries. For all grantees, whether foreign or domestic, Applicant will conduct, due diligence, to determine the grant recipient's ability to accomplish the charitable purposes for which the particular grant is intended. The level of due diligence will depend on the grantees' structure (e.g. a public charity requires less due diligence). A grantee's charitable or tax-exempt status, if any, will be noted in Applicant's files. Grantees outside the U.S. may or may not be organized as charities, depending on the circumstances in the country where the grantee is located. For example, in some countries, registration as a charitable organization is difficult and costly, and effective organizations may not have charitable status; Applicant does not want to exclude such organizations from eligibility for funding. Accordingly, Applicant's pre-grant inquiries will focus on whether a grantee is organized and operated in a manner that enables it to carry out Applicant's purposes. Applicant will also assess the potential grantee's location and operations for any indication of higher than usual risk that charitable assets may be diverted to non-charitable purposes such as private benefit or, in the worst case, terrorist activities. (Where a grantee's location or operations indicate that there is a higher than usual risk that charitable assets may be diverted, Applicant will take such steps as it believes are most likely to reduce the risk.) .

Question 9(e): Additional Oversight Procedures. Depending on the circumstances of particular grants, Applicant may perform site visits or may engage accounting firms or consultants to perform additional oversight at the local level. Applicant has not made any grants to date, however, and is still formulating specific procedures in this regard.

Question 9(g): Additional Steps. In addition to checking the OFAC List of Specially Designated Nationals and Blocked Persons for names of individuals and entities with whom Applicant is dealing to determine if they are included on the list, Applicant will:

- Require all overseas grantees to certify that they will not use any grant funds to support or engage in violent or terrorist activities;
- Conduct careful due diligence on each prospective grantee; and
- Promptly investigate any apparent misuse of grant funds.

Schedule H: Fellowships and Educational Grants to Individuals, Section I.

Question 1: Description of Program. As described in Part IV, Question 1, Applicant may provide direct support to individuals in furtherance of the Mission. These grants will support individuals engaged in charitable activities that advance knowledge and promote the development of OSS freely available for public use. Potential grant recipients will be required to describe their proposed project, provide evidence of qualifications to carry it out, and demonstrate how the resulting work will be made publicly accessible and contribute to the public good. The Board may require additional documentation, such as references, work samples, or interviews.

Question 2: Case Histories. When Applicant is ready to implement this program, it will maintain the records required by Revenue Ruling 56-304, 1956-2 Cum. Bull. 306, regarding the distribution of charitable funds to individuals.

Question 3: Specific Criteria of Eligibility. Eligible individuals will include those who demonstrate the ability to carry out projects aligned with the Applicant's Mission, including developing OSS or tools that serve a broad public benefit. While grants may be made to individuals regardless of financial need, in some cases need may be taken into account as a factor in the selection process.

There will be no restrictions or preferences based on race, religion, gender, national origin, or any other legally impermissible criterion. Applicant may from time to time define additional eligibility factors consistent with its Mission, such as geographic focus or underrepresentation in the technology field.

Question 4: Specific Criteria for Selection. Selection criteria will be developed prior to implementation of the program. Applicant's goal will be to identify individuals whose proposed projects are well-aligned with its Mission, demonstrate technical feasibility, and will result in work that is freely and publicly available.

Question 5: Criteria for Obtaining Grant Renewal. Applicant has not yet developed a policy for grant renewal. Grants may be made as one-time awards for defined projects. In the future, renewal or follow-on funding may be considered based on satisfactory completion of prior work and continued alignment with Applicant's Mission.

Question 6: Supervision of Fellowships. Each recipient will be required to execute an agreement outlining the terms and conditions of the grant, including the permitted uses of funds, reporting requirements, and return of funds in the event of misuse.

Question 7: Selection Committee. Grant recipients will be selected by Applicant's Board of Directors, consistent with its conflict of interest policy and any applicable legal or ethical standards. The Board may delegate aspects of the application review process to a qualified advisory committee or staff, but final funding decisions will remain with the Board.

Question 8: Eligible Relatives. Relatives of members of the selection committee, officers, directors, or substantial contributors may be eligible to receive grants under this program; however, Applicant will take strict measures to ensure that all selections are fair, objective, and free from conflicts of interest.

Any individual involved in the selection process who has a personal or familial relationship with a potential recipient is required to disclose the relationship and recuse themselves from reviewing, discussing, or voting on that individual's application. All applications are evaluated based on established, neutral criteria that reflect the charitable purpose of the program.

Applicant's conflict of interest policy governs these procedures and is enforced by the Board of Directors to ensure that no grant results in private benefit or gives the appearance of preferential treatment.

MILL LAW CENTER
Empowering Non-Profits

Zulefika Mofokeng <zulefika@mill.law>

Pay.gov Payment Confirmation: Form 1023

notification@pay.gov <notification@pay.gov> Mon, Apr 14, 2025 at 11:47 AM
To: zulefika@mill.law

An official email of the United States government

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You successfully submitted your Form 1023 user fee payment to Pay.gov and the details are below. For information on the status of your application, visit IRS.gov and search for Where's My Application. If you submitted your application before the date indicated on that page and haven't been contacted, you can call the toll-free Customer Account Services number, Monday through Friday, 8 a.m. - 5 p.m. (local time), at 877-829-5500 to check on the status. You will need the information specified on the Where's My Application page, including your name and employer identification number (EIN), when calling.

Application Name: Form 1023
Pay.gov Tracking ID: 27MP6U3T
Agency Tracking ID: 77017134376
Transaction Type: Sale
Transaction Date: 04/14/2025 11:47:08 AM EDT
Account Holder Name: Patrick Hogan
Transaction Amount: $600.00
Card Type: Visa
Card Number: **********2877

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